

and confer efforts require more than futile emails and a one-sided formal letter. (See C.C.P., §§ 2016.040; 2019.030, subd. (b), 2030.090, subd. (a), 2031.060, subd (a).)

Nonetheless, the Court finds that M3 failed to provide dates for deposition of their person most knowledgeable prior to March 12, 2026; many of the dates provided were weekend dates; and all dates appear to not be available for the Association. Given the seven-month delay and limited weekday dates provided, the court does not find the motion to compel now moot, rather, **the motion to compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.’s Person Most Knowledgeable is to take place on or before April 24, 2026.**

“If, after service of a deposition notice...without having served a valid objection...[the person] fails to appear for examination...the party giving the notice may move for an order compelling ...attendance and testimony...If a motion under subdivision (a) is granted, the court shall impose a monetary sanction...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2025.450, subd. (a)&(g).) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc., supra*, p. 75, citing *Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*U.S. Swimming, Inc., supra*, p. 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

As previously stated, M3’s objection to the deposition was not valid and the court does not find that M3’s conduct was with substantial justification. Sanctions are appropriate for the seven-month delay in providing dates for the deposition and failing to produce Mr. Musser at the two dates noticed. (See C.C.P. §2025.450 (g)(2).) **The Association’s request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.**

3. 9:00 AM CASE NUMBER: MSC21-01498

CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS,
SET 1

TENTATIVE RULING:

The Association's Motion to Compel Responses is DENIED as Moot as it appears that M3 subsequently verified their responses. The Association's request for sanctions is GRANTED, however, the amount for sanctions is reduced to \$450. M3 is to pay the Association \$450 in sanctions by April 22, 2026. The Association's new Motion to Compel Further Responses is CONTINUED to April 23, 2026.

The Association's Motion to Compel filed February 9, 2026, related to M3's failure to provide a verification with their July 2, 2025, responses to the Association's Request for Production of Documents, set one, served May 29, 2025. Based on the Association's March 19, 2026, Reply in support of their Motion to Compel M3's responses, it appears that M3 ultimately filed a verification and on March 13, 2026, they filed supplemental responses to the Association's request. Nonetheless, the Association now asserts that M3's supplemental verified responses were deficient and non-responsive, indicating that the Association is now seeking to compel *further responses* from M3 to their Request for Production of Documents, Set One.

This court orders that while M3 appears to have verified their July 2, 2025, responses sometime after the Association filed their motion on February 9, 2026, there is no justification as to why it took over seven months for them to do so. Pursuant to California Rules of Court Rule 3.1348, "the court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed...or the requested discovery was provided to the moving party after the motion was filed." Here, the court finds sanctions appropriate. However, the requested amount is unreasonable and the amount is reduced.

The Association's request for sanctions is GRANTED and M3 is to pay the Association \$450 in sanctions by April 22, 2026.

In the interest of judicial economy and the efficient resolution of this dispute between the parties, given an approaching trial date, this court takes the Association's Reply and declaration in support as a Motion to Compel Further Responses maintaining that M3's supplemental responses were deficient. This court will give M3 an opportunity to be heard as the issues before this court have evolved.

The parties are ORDERED to do the follow: 1) engage in good faith meet and confer efforts by April 10, 2026 either via telephone or in person; 2) file a supplemental brief by April 17, 2026 if the parties are able to resolve or at least able to narrow any of the issues before the court related to this motion; 3) M3 shall file, if they so desire, a response to the Association's motion by April 17, 2026, if the meet and confer efforts do not result in a productive resolution of the issues and still requires this court's intervention; and 4) if these issues are not resolved, appear for a hearing on this motion April 23, 2026 at 9:00 a.m. in Department 20, only if the parties contest the court's tentative ruling that will be issued on April 22, 2026.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C22-02483
CASE NAME: SASCHA ROGERS VS. CASSANDRA BANKSON, LLC
SETTLEMENT CONFERENCE IN-PERSON WITH JUDGE MELISSA O'CONNELL IN DEPT 20
FILED BY:
TENTATIVE RULING:

Vacated based on signed stipulation between the parties to continue the settlement conference to a later date.